

WPVC Agreement:

This agreement (the "Agreement") is between Winter Park Volleyball Academy, LLC, doing business as Winter Park Volleyball Club (hereinafter "WPVC", the "Club" or "We") and the undersigned (hereinafter "I", "You", "Your" or words of similar import).

Dues and Fees

I understand that I am responsible for all Club Fees due for the player (the total of which depends on the Team Level(s) to which Your athlete is assigned and is set forth on the Team Level Page). The balance of the Club Fees after the deposit paid today will be automatically charged by credit card or ACH in monthly payments described on the Team Level Page. Your Club Fees include but are not limited to:

- Training and coaching
- Tournament entry fees (Does not include Junior Olympics)
- Administrative fees, facility rental and office expenses
- Coaches' salaries, travel, and lodging expenses
- Strength & Conditioning for Armour teams (12 & up)

Deposit

At the time of tryouts, I understand and agree that a **NONREFUNDABLE** deposit in the amount of \$500.00 (the "Deposit") is due to and fully earned by the Club. The Deposit is applied toward the Club Fees.

Additional Cost

- Team Ball & Mesh Clip-on Ball Bag – (\$75 Armour & Elite) and (\$50 Central); Tournament ball & travel bag for player to use for home practice and bring to every tournament; billed 8/1/2024. Fee waived if player still has age-appropriate ball and bag from prior season.
- Uniform Fee – Armour (\$395), Elite (\$345), Central (\$250); billed 8/1/2024.
- 4% Fee if using a credit card for payment.

Financial Agreement

Club Fees may be paid in full or on a monthly payment schedule. All Club Fees paid by credit card will incur a 4% fee; in order to avoid this fee, a check must be delivered to the Club prior to the due date. **There are no refunds for the deposit.** Failure to pay Club Fees, including the deposit, will result in removal from the team. Past due payments (all payments are considered late after 10 days from the due date) will incur a \$50 late fee and if payments become more than 45 days late the account will be referred to a collection agency and You will be responsible to pay all costs of collection, including but not limited to collection fees charged by any third party, costs incurred to collect on the account, and attorneys' fees (including those incurred for collection activities, pre-litigation, during litigation and any appellate proceedings) incurred by the Club. In the event the method of payment chosen for the Deposit of any monthly payment should fail or later be disputed, you understand that such will not affect the binding nature of this Agreement and agree to make payment of the total amount due by another method. If Club Fees are being paid on a monthly payment plan,

WPVC is entitled to receive the entire balance due on each specified due date. Sibling discounts are offered, and the discount is deducted from the lower of the siblings' dues. If You have received a financial hardship scholarship, any discount provided will be owed to the Club if player leaves the team or the conditions of the hardship scholarship are not honored per the separate scholarship agreement.

Credit Reporting

Consumer Credit Report Authorization: By signing this document I authorize and instruct the Club to obtain, review, and use my consumer credit report from any consumer reporting agency ("CRA") of its choice. I also authorize the release to CRAs of financial or other information that I have supplied to the Club in connection with this transaction. Any such CRA is authorized to use a copy of this form to obtain any information the CRA deems necessary to complete my consumer credit report. I understand that I may revoke my consent to these disclosures by notifying the Club in writing. I understand and agree that the Club or a third party collection agency may furnish negative information to CRAs in the event my account becomes delinquent.

Refund Requests

Playing Club volleyball is a commitment that should not be taken lightly. You have weighed the financial and time commitments, and You understand that by committing to a team, you are taking an opportunity away from another athlete and the Club. Therefore, when You make this commitment, you are making a commitment to pay the entire season's dues and a time commitment for the entire season. Fees paid to WPVC are non-refundable, however, should an athlete have a season-ending injury or relocation 100 or more miles away from Central Florida after Agreement is signed, refunds (in the event of pre-paying dues) or future payments may be, but not guaranteed to be, forgiven. In order to be considered for a refund or release from future payment obligations, you must provide a written request to the Director within ten (10) days of the injury, learning of the relocation, which written request must be accompanied by supporting documentation, including, but not limited to, a physician's report. Any season ending reasons must include all volleyball (school teams included). **The deposit, uniform fee, and ball fee, however, are never refundable under any circumstance, with no EXCEPTIONS.** In the event any refund is provided (not on the initial deposit, uniform or ball fee, as explained above) Club Fees will be prorated with the exception of monies already spent (i.e., tournament entry fees, uniforms, etc.) **NO REFUNDS will be granted after December 1st of the current season.**

Missing Tournaments

If an athlete misses Qualifiers or Nationals, there will be a \$100 a day fee for missing unless given approval at the first practice. Exceptional cases will be reviewed by directors.

Covid Refund Policy

With the uncertainty of Covid and its effects on the volleyball season, the Club will make every reasonable effort to provide a safe environment for Your player to get as much out the season as possible. If due to Covid or similar type outbreak, natural disaster, or act of God, the Club is required to temporarily close or if any tournaments are cancelled, we will do our best to reschedule tournaments and provide additional training to compensate for any time lost. If the season is cancelled in its entirety, Club Fees will be adjusted based on any savings the Club recovers in tournament entry fees, travel cost, coaches' salaries, etc.

Rules and/or Regulations

If You fail to observe the Club's rules and regulations, as set forth in the Handbook or as established by Us from time to time, we may take such actions as set forth in the Handbook. Not all rules and regulations are listed in the Handbook and We reserve the right to add, change or remove rules, conditions of participating in Club play, opening and closing hours, and all services and facilities We offer.

Electronic Signature

You agree that this Agreement and any other documents to be delivered in connection herewith may be electronically signed, and that any electronic signatures appearing on this Agreement, or such other documents are the same as handwritten signatures for the purposes of validity, enforceability, and admissibility. Each of the documents signed, including but not limited to, the Tryout Form, the Handbook, and Scholarship Agreement, are incorporated herein by this reference.

Miscellaneous

This Agreement constitutes the entire understanding and agreement between You and the Club, and supersedes all prior written and contemporaneous oral agreements, understandings, inducements, and conditions, express or implied, among or between You and the Club. The express terms of this Agreement control and supersede any course of performance or usage of trade inconsistent with any terms hereof. In the event of any litigation brought to enforce the terms of this Agreement, the prevailing party in such litigation shall recover from the other party its reasonable attorneys' fees and costs incurred, including those incurred pre-suit, at the trial level and all appellate levels.

WAIVER OF JURY TRIAL. THE PARTIES HERETO KNOWINGLY, VOLUNTARILY, INTENTIONALLY AND IRREVOCABLY WAIVE ANY AND ALL RIGHT TO A TRIAL BY JURY IN ANY ACTION OR PROCEEDING TO ENFORCE OR DEFEND OR CLARIFY ANY RIGHT, POWER, REMEDY OR DEFENSE ARISING OUT OF OR RELATED TO THIS AGREEMENT OR THE TRANSACTION CONTEMPLATED HEREIN, WHETHER SOUNDING IN TORT OR CONTRACT OR OTHERWISE, OR WITH RESPECT TO ANY COURSE OF CONDUCT, COURSE OF DEALING, STATEMENTS (WHETHER ORAL OR WRITTEN) OR ACTIONS OF ANY PARTY; AND EACH AGREES THAT ANY SUCH ACTION OR PROCEEDING SHALL BE TRIED BEFORE A JUDGE AND NOT BEFORE A JURY. EACH PARTY FURTHER WAIVES ANY RIGHT TO SEEK TO CONSOLIDATE ANY SUCH LITIGATION IN WHICH A JURY TRIAL HAS BEEN WAIVED WITH ANY OTHER LITIGATION IN WHICH A JURY TRIAL CANNOT OR HAS NOT BEEN WAIVED.

Dated: 07-14-2024

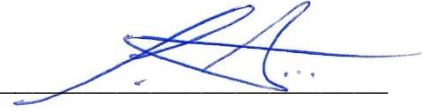
"You"

Cesar Arias

Print name: Cesar Arias

Player name: Catalina Arias

Winter Park Volleyball Club

By: 

Authorized Representative

Team Levels

The Girls Armour Program: 12U & Up (10 payments of \$495) and 11U & Under (10 payments of \$386):

This program is for the athletes who have a strong desire to play volleyball in college. The athlete must be fully committed to making volleyball a number one priority over other activities. The members of our Armour teams will travel out of state to National Qualifiers where they will compete against the top teams in the country. The players on these teams must commit to attend all travel tournaments, Qualifiers, and National tournaments.

- Up to 3 2-hour Practices per week, 8-month season (10U & 11U 2 per week, with 1-2 additional trainings per month)
- 5-6 Travel Tournaments (will include in and out of state travel), 5-6 Local Tournaments
- 2 - 45-minute Strength & Conditioning sessions per week (age 12 & above)
- Each team will have a Head Coach and Assistant Coach
- Playing Time – There is no guarantee; Armour teams are very competitive and play time will be based on putting the team in the best position to win.
- SportsRecruit account included (1st Year Only) for those that Commit at Initial Tryout. \$200 after initial (\$400 Value)
- Your daughter is required to attend all Qualifiers, out of state tournaments and Nationals

The Girls Elite Program: 12U & Up (9 payments of \$439) and 10U & 11U (9 payments of \$340):

This program is designed for the player who may also have an interest in playing volleyball in college. The athlete must be willing to make the sacrifices necessary for her/his progress and that of the team. While not quite as intense as the Armour Program, these teams are still very competitive and will compete in high level tournaments. The players on these teams must commit to attend all travel tournaments and National tournaments as scheduled.

- 2 Practices per week, 1-2 additional trainings per month, 8-month season
- 2-3 Travel Tournaments (may include 1 out of state travel), 6-7 Local Tournaments
- Each team will have a Head Coach and share an Assistant Coach
- Playing Time – There is no guarantee, however Elite teams are slightly less competitive than Armour and coaches work to make sure everyone has an opportunity to play.
- SportsRecruit account recommended 15u & older looking to play in college. WPVC Discount of \$200. (\$400 Value)
- Your daughter is required to attend all Qualifiers, out of state tournaments and AAU Nationals

The Girls Central Program: 12U & Up (8 payments of \$320) and 10U & 11U (8 payments of \$200):

The central program is designed as developmental for the player who may also have an interest in playing volleyball at a higher level but isn't ready for intense commitment.

- 2 Practices per week, 6-month season
 - 1-2 In-State Travel Tournaments, 7 Local Tournaments
 - Play Time – As a developmental team, coaches will make sure all players will rotate in on a regular basis within their specific position.
 - Option to extend season through AAU Nationals in June in Orlando for \$500

Additional Cost:

- Travel expenses (hotel, airfare, etc.) for away tournaments is the responsibility of the player/parent.
- Team Ball & Bag – (\$75 Armour & Elite) and (\$50 Central); billed August 1st.
- Uniform Fee – Armour (\$395), Elite (\$345), Central (\$250); billed August 1st.
- \$300 Player fee if team qualifies for USAV Nationals or plays an additional out of state qualifier (e.g.: Triple Crown)

Please scan the QR code to review

player and parent handbook.



Signature Certificate

Reference number: 8KZUM-OAVEF-6YGEK-GXUSQ

Signer

Timestamp

Signature

Cesar Arias

Email: cfarias5@icloud.com

Sent:

14 Jul 2024 20:19:25 UTC

Viewed:

14 Jul 2024 20:21:42 UTC

Signed:

14 Jul 2024 20:23:41 UTC

Cesar Arias

Recipient Verification:

✓ Email verified

14 Jul 2024 20:21:42 UTC

IP address: 172.56.78.25

Location: Orlando, United States

Document completed by all parties on:

14 Jul 2024 20:23:41 UTC

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